

Court No. - 37

Case :- WRIT - C No. - 21892 of 2012

Petitioner :- Manoj Kumar And Others

Respondent :- The State Of U.P. Thru Secy. And Others

Petitioner Counsel :- R.B. Trivedi, Smt. Abha Tripathi

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

We have heard Shri R.B. Trivedi, learned counsel appearing for the petitioners. Learned Standing Counsel appears for the State respondents. Shri Rajesh Tripathi appears for respondent no. 4.

Earlier the petitioner had filed Writ Petition No. 18633 of 2006 for correction of the bills. His representation was directed to be decided on 4.4.2006.

It appears that instead of pursuing the remedies in the department in accordance with the provisions of the U.P. Electricity Supply Code, 2005 the petitioner filed a Case No. 43 of 2008 in the District Consumer Forum at Auraiya, in which an interim order was passed, of the nature of mandatory injunction directing the respondents to re-connect the electricity. We also find that the Consumer Forum had directed the Executive Engineer to appear for failing to comply with the interim order on 22.2.2008.

We take strong exception to the orders passed by the District Consumer Forum. The Consumer Protection Act does not have powers to pass the interim orders in the nature of mandatory injunction, without giving any reasons at all, and thereafter summon the concerned officers to comply such order.

It appears that taking advantage of the orders, the petitioner reconnected the electricity on which a theft case under Section 138-B of the Electricity Act was registered against him on 5.4.2011, and in which he obtained an interim order of stay of arrest in Criminal Misc. Writ Petition No. 7282 of 2011 on 26.4.2011.

There is nothing to show that the offence under the Electricity Act has been compounded. The electricity department has assessed electricity dues of Rs. 7, 02, 518/- and has initiated recovery giving rise to this writ petition.

The petitioner is already pursuing his remedies before the District

Consumer Forum. He has also a right to appeal against the assessment of electricity dues under Section 27 of the Electricity Act.

The writ petition is **dismissed**. Let a copy of this order be sent by Shri Rajesh Tripathi, learned counsel appearing for the respondents to the Chairman, State Consumer Commission.

Order Date :- 4.5.2012

RKP